

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
ANTHONY JIMENEZ,

Plaintiff(s),

-against-

Plaintiff designates
Bronx County
the place of trial

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER JOSE CORDERO (Badge No: 14899), NEW
YORK CITY POLICE OFFICER NICOLAS RIOS (Badge
No: 6583), NEW YORK CITY POLICE OFFICER
"JOHN" PENA and NEW YORK CITY POLICE OFFICER
"JOHN" GOMEZ,

Defendant(s).

The basis of venue is
site of occurrence

SUMMONS

Plaintiff resides at:
2764 Creston Avenue
Bronx, NY 10468

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To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 10, 2020

Yours, etc.,


Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

City of New York

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER POLICE OFFICER JOSE CORDERO (Badge No: 14899)

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER POLICE OFFICER NICOLAS RIOS (Badge No: 6583)

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER "JOHN" PENA

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ

100 Church Street

New York, NY 10007

BELOVIN FRANZBLAU & ASSOCIATES, PC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANTHONY JIMENEZ,

VERIFIED COMPLAINT

Plaintiff(s),

Index No:

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER JOSE CORDERO (Badge No: 14899),
NEW YORK CITY POLICE OFFICER NICOLAS RIOS
(Badge No: 6583), NEW YORK CITY POLICE
OFFICER "JOHN" PENA and NEW YORK CITY
POLICE OFFICER "JOHN" GOMEZ,

Defendant(s).
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Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU & ASSOCIATES, PC**, as and for a verified complaint, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That all the times hereinafter mentioned, plaintiff was and still is a resident of the City and State of New York, County of Bronx.
2. At all the times herein, the defendant, **CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in the City of New York, County of Bronx.
3. Upon information and belief, the defendant, **CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER JOSE CORDERO** (Badge No: 14899), **NEW YORK CITY POLICE OFFICER NICHOLAS RIOS** (Badge No:

6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, who were herein duly employed and acting New York City Police Officers or other ranking officers of the City of New York, County of Bronx, State of New York and upon information and belief, the defendants, NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, were and still are, at all times herein mentioned, residents of the State of New York, City of New York, County of Bronx.

4. Upon information and belief, that all times herein, the defendants, NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ, were and still are employees of The City of New York Police Department as Police Officers and/or other ranking Officers, and were at all times herein acting within the furtherance and scope of their employment with THE CITY OF NEW YORK. The defendant, CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendants, NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ,

pursuant to the doctrine of respondeat superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER JOSE CORDERO** (Badge No: 14899), **NEW YORK CITY POLICE OFFICER NICHOLAS RIOS** (Badge No: 6583), **NEW YORK CITY POLICE OFFICER "JOHN" PENA** and **NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendants, **NEW YORK CITY POLICE OFFICER JOSE CORDERO** (Badge No: 14899), **NEW YORK CITY POLICE OFFICER NICHOLAS RIOS** (Badge No: 6583), **NEW YORK CITY POLICE OFFICER "JOHN" PENA** and **NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ**, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of Bronx, and under the authority of the office as Police Officers for New York City.

7. Prior to the commencement of this action, on the 3rd day of September, 2019, a Notice of Claim was duly served herein on the defendants. That on the 26th day of February, 2020, the defendant, **CITY OF NEW YORK**, conducted a 50-H hearing pursuant to the General Municipal Law. That more than thirty days have expired since the

filing of a Notice of Claim and the defendant has failed and neglected to adjust the claim. This action is timely brought.

8. Upon information and belief, on or about the 11th day of March, 2018, the defendant, **THE CITY OF NEW YORK**, by their employees, the defendants, **NEW YORK CITY POLICE OFFICER JOSE CORDERO (BADGE NO: 14899)**, **NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (BADGE NO: 6583)** and **NEW YORK CITY POLICE OFFICER "JOHN" PENA AND NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ**, falsely and maliciously accused the plaintiff, **ANTHONY JIMENEZ**, of crimes and violations.

9. Upon information and belief, said charges were bought against the plaintiff, **ANTHONY JIMENEZ**, with malice.

10. Upon information and belief, there was no probable cause for bringing said charges against the plaintiff and said charges were false and defendants intended to maliciously prosecute plaintiff.

11. Upon information and belief, as a result of the above malicious prosecution, plaintiff was forced to make several Court appearances to defend himself and suffered great fear, anxiety and emotional pain and suffering while he waited for two years until the charges were eventually dismissed.

12. Upon information and belief, on August 5, 2019, all charges were dismissed against the plaintiff.

13. Upon information and belief, the above actions of the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ,** constitute malicious prosecution by the defendants, all against the plaintiff, **ANTHONY JIMENEZ.**

14. By reason of the foregoing **MALICIOUS PROSECUTION** the plaintiff, **ANTHONY JIMENEZ,** sustained personal, physical, mental and emotional injuries, loss of esteem, shock, humiliation, embarrassment, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against defendants, **NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ,** and was otherwise damaged, all in a sum exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs "1" through "14".

16. Upon information and belief, during all the times herein, the individual defendants acted under the color of law and

statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

17. Upon information and belief, the defendants engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States. The defendant in maliciously prosecuting plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution including the right to be free of false and malicious accusations, unnecessary and unlawful detention, assault, battery and all other rights secured by the Constitution of the United States and 42 United States Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

18. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

19. Plaintiff hereby demands reasonable attorney's fees pursuant to 42 United States Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs "1" through "19".

21. Upon information and belief, the actions and conduct described herein by NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ and the New York City Police Department, constituted and demonstrated an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ and/or constituted a continuing pattern of abuse and misconduct by the New York City Police Department, NEW YORK CITY POLICE OFFICER JOSE CORDERO (Badge No: 14899), NEW YORK CITY POLICE OFFICER NICHOLAS RIOS (Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and NEW YORK CITY POLICE OFFICER "JOHN" GOMEZ and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

22. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental

injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

23. Plaintiff hereby demands reasonable attorney's fees pursuant to 42 United States Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgement on each cause of action against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the first cause of action, in an amount exceeding the jurisdictional limits of all lower Courts on the second cause of action and in an amount exceeding the jurisdictional limits of all lower Courts on the third cause of action, plus punitive damages against defendants, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
March 10, 2020

Yours, etc.



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

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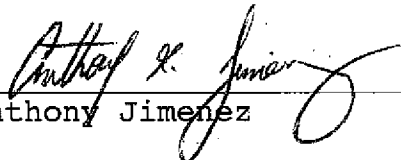
VERIFICATION

State of New York)

ss:

County of Bronx)

Anthony Jimenez, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.



Anthony Jimenez

Sworn to before me on
March 10, 2020



Notary Public

LAURA PANISSIDI
Notary Public, State of New York
No. 01PA5017882
Qualified in BRONX County
Commission Expires September 13, 2021

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(Badge No: 6583), NEW YORK CITY POLICE OFFICER "JOHN" PENA and
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Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin Franzblau & Associates, PC
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2311 White Plains Road
Bronx, NY 10467
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TO: